



CROOK COUNTY WIND AND SOLAR ENERGY FACILITY REGULATION

Approved: _____, 2025

CROOK COUNTY
WIND AND SOLAR ENERGY FACILITY REGULATION

State of Wyoming

Approved and Adopted: _____2025

I certify that the attached is a true and correct copy of the Crook County Wind and Solar Energy Facility Regulation, Crook County, Wyoming adopted pursuant to and in accordance with the authority vested in the Board of County Commissioners of Crook County by the statutes of the State of Wyoming, Sections 18-5-501 through 18-5-513, and Sections 16-3-101 through 16-3-115.

This Wind and Solar Energy Facility Regulation amends the Wind Energy Regulation dated June 6, 2012, and adds for the first time Solar Energy Facilities in this amended regulation.

Prior to adoption, this Wind and Solar Energy Facility Regulation was reviewed by the Board of County Commissioners and Land Use Planning Board, County Department heads and made available for public inspection on May 6, 2025. A notice was published in the Sundance Times, the Moorcroft Leader, and the Wyoming Pioneer at least 45 days before this Regulation was adopted by the Board of County Commissioners and published on the Crook County Website on or before June 12, 2025.

The attached Wind and Solar Energy Facility Regulation is effective immediately upon filing with the Crook County Clerk.

Signed this _____2025

CROOK COUNTY CLERK

Mellisa Jones

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WIND AND SOLAR ENERGY FACILITY REGULATION

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CHAPTER 1
WIND AND SOLAR ENERGY FACILITY REGULATION

Section 1. Title. This regulation shall be known as the Crook County Wind and Solar Energy Facility Regulation.

Section 2. Authority. The Crook County Wind and Solar Energy Facility Regulation is authorized by W.S. 18-5-501 through 18-5-513 enacted by the Sixtieth Legislature of the State of Wyoming, 2010 Budget Session and by W.S. 16-3-101 through 16-3-115.

Section 3. Purpose. This Regulation is enacted for the purpose of implementing Crook County Wind and Solar Energy Facilities Rules and Regulations, establishing requirements and procedures to regulate and control the design, installation and decommissioning of all wind and solar energy facilities to be constructed and operated within Crook County and to ensure said wind and solar energy facilities are in compliance with all applicable Wyoming Statutes, Crook County Policies and Rules and Regulations.

Section 4. Definitions. For the purposes of this Regulation, the present tense shall include the future tense, the singular member shall include the plural, and the plural member shall include the singular, the masculine shall include the feminine and neuter, unless the context requires otherwise. For the purpose of the Crook County Wind and Solar Energy Facilities Regulation the following definitions shall apply:

- 1) "Industrial siting council" or "council" means the council created by W.S. 35-12-104;
- 2) "Wind energy facility" means any wind powered electrical generation development consisting of an individual wind turbine or multiple wind turbines rated by the manufacturer to generate more than one-half (0.5) megawatt of electricity and includes all lands where the owner or developer has rights to erect wind turbines;
- 3) "Enlarge" or "enlargement" means adding additional wind turbines or energy capacity that is not permitted as part of an original permitting process. "Enlarge" or "enlargement" shall not include an improvement made to a permitted wind turbine that maintains the same surface space occupied by the structure that was previously permitted, regardless of the cost of the improvement;
- 4) "Owner" means the surface owner of land as shown in the records of the Crook County Assessor prior to January 1 of the current year and the records of the Crook County Clerk from January 1 to the date of filing of the application, and includes each person on the deed or co-tenant;
- 5) "Facility" includes:
 - (a) A wind energy facility or a solar energy facility unless the context clearly indicates otherwise;

- (b) A wind energy facility or a solar energy facility planned for construction and siting or whose ownership or business structure is organized in a way to circumvent the definition of "facility" or the requirements of this article Wyoming Statute 18-5-501 et Seq., while engaging in conduct that otherwise would be subject to the requirements of this article Wyoming Statute 18-5-501 et Seq. A facility that meets the definition of this subparagraph shall comply with all requirements of this article before locating, erecting, constructing, reconstructing or enlarging the facility.
- 6) "Solar energy facility" means a commercial facility with a rated power capacity of more than one-half (0.5) megawatt of electricity from solar power that includes all lands where the owner or developer has rights to erect solar energy facilities, including lands for battery storage;
- 7) "Applicant" means the owner or developer of a facility;
- 8) "Certify" means the Applicant's professional engineer licensed in Wyoming that is an individual human being that swears under oath by affidavit that they were authorized to do so and have completed the requirement;
- 9) "Reasonable efforts have been undertaken to provide notice" means that the applicant has provided notice that substantially complies with W.S. 18-5-503, (a), (i) and (ii); 18-5-504 (c) and any amendment thereto; with Rules and Regulations of the Industrial Siting Council, Chapter 1, Section 9 ~~10~~, (g), (i) and any amendment thereto; and with this Regulation by first class mail, or by personal service to the owners of land, record owners of mineral rights, cities, towns, and counties, and also by publication for two consecutive weeks in each newspaper of general circulation published within Crook County, (in the Sundance Times, the Moorcroft Leader, and the Wyoming Pioneer) and publishing on the county website;
- 10) "Financial assurances" means as set forth in the Rules and Regulations promulgated by the Industrial Siting Council of the Wyoming Department of Environmental Quality, (See Chapter 1: Industrial Development Information and Siting Rules and Regulations and any other rules.)
- 11) "Residential dwelling" means any structure that is assessed by the County Assessor as a residential structure as of January 1 of each year and/or a rural address has been assigned by the local governmental entity, and the records of the Crook County Clerk from January 1 to the date of filing of the application;
- 12) "Occupied structure" is defined as a structure whether or not a person is actually present where any person lives or carries on business or another calling, where people assemble for business, government, education, religion, entertainment or public transportation; which is used for overnight accommodations; or in which persons may

reasonably be expected to be present; and this includes structures that are a part of the facility such as maintenance shops and offices.

13) “Maximum height of the tower” means the distance from the top of the foundation to the highest point of any portion of a wind energy facility, including the tip of any blade.

14) “Record owners and claimants of mineral rights located on and under lands where the wind and or solar energy facility will be constructed” means those persons or entities that have any interest in the fee, leasehold, or mining claim interest in the mineral estate located on and under lands where the wind energy facility will be permitted.

15) “Waiver” means a binding recordable document that relinquishes a legal right or a right granted by these rules. Any waiver set forth in these rules shall terminate when the permit granted expires, is revoked or the facility is decommissioned and any Waiver document shall so indicate; and

16) Other words used in these rules and regulations shall be defined as set forth in Title 35 and 18 of the Wyoming Statutes and as set forth in the Rules and Regulations promulgated by the Industrial Siting Council of the Wyoming Department of Environmental Quality.

Section 5. Permit Requirement.

1) Permit. Pursuant to Wyoming Statute 18-5-502 it is unlawful to locate, erect, construct, reconstruct or enlarge a facility without first obtaining a permit from the board of county commissioners in the county in which the facility is located.

2) Multiple County Permits. If a facility is to be located in two (2) or more counties, a permit shall be obtained in each county in which the wind energy facility is to be located.

3) Permit Exceptions. No wind energy facility constructed or being constructed prior to July 1, 2010 shall be required to have the permit required by this section. No wind energy facility for which an application for a permit has been made to the industrial siting council, or that has received findings of fact, conclusions of law and an order from the industrial siting council, prior to July 1, 2010 shall be required to have the permit required by this section.

4) Permit for Enlargement. Any wind energy facility which is not required to have a permit pursuant to subsection (c) of this section shall be required to obtain a permit for any enlargement of the facility after July 1, 2010.

5) Prior to law Construction. No solar energy facility that has obtained final county approval where required or that is constructed or being constructed prior to July 1,

2020 shall be required to have the permit required by this section. Any solar energy facility that is not required to have a permit pursuant to this subsection shall be required to obtain a permit for any enlargement of the facility after July 1, 2020.

Section 6. Application for Permit.

1) To obtain the permit required by W.S. 18-5-502, and these rules the Applicant of a facility shall submit an application to the board of county commissioners. The application shall:

(a) Written Notice. Certify by sworn affidavit that reasonable efforts have been undertaken to provide notice to the following persons at their mailing address in writing to:

(i) All owners of land within one (1) mile of the proposed facility,

(ii) To the military installation commander or the commander's designee if there are any active federal military missile launch or control facilities within five (5) miles of the proposed facility,

(iii) To the department of transportation; and

(iv) To all cities and towns located within Crook County and within twenty (20) miles of the facility.

(v) To all record owners and claimants of mineral rights located on and under lands where the facility will be constructed as required by the Industrial Siting Rules and Regulations authorized by W.S. 18-5-504 (c).

(vi) To the FAA and any operator of a public or private airport and/or airfield within five (5) miles of the boundary of the proposed facility.

(vii) To the District Ranger of the National Forest, BLM and National Monument, and Director of State Parks if within (10) miles of the proposed facility.

(b) Notice Requirements. The notice shall include a general description of the project including its location, including a map of the area and project site, projected number and capacity of turbines or solar energy facilities, the likely routes of ingress and egress and the likely location of electric transmission and other related facilities;

(c) Publication. Certify that notice of the proposed facility will be published on the County website and in all newspapers of general circulation in all counties in which the facility will be located at least twenty (20) days prior to the public hearing required by W.S. 18-5-506. (In Crook County that is currently the Sundance Times, the Moorcroft Leader, and the Wyoming Pioneer, all of which are weekly papers.) The notice shall include a brief summary of the facility, include a general description of the project including its location, including a map of the area and project site, projected number and capacity of turbines or solar energy facilities, the likely routes of ingress and egress and the likely location of electric transmission and other related facilities, invite the public to submit comments and identify the time and date of the hearing;

(d) Standards. Certify that the proposed facility will comply with all the standards required by W.S. 18-5-504 and as set forth in these rules;

(e) Zoning and Land Use regulations. Certify that the proposed facility will comply with all applicable zoning and county land use regulations, which regulations shall be no less stringent than the standards required by this article Wyoming Statute 18-5-501 Et seq.;

(f) Emergency Management, Fire Warden and Sheriff. Certify that a written emergency management plan has been submitted for review and comment to the county fire warden, county emergency management coordinator and the county sheriff. If the permit is granted, the plan shall be supplemented and revised following construction of the facility and prior to its operation if there are any variations in the facility's construction which would materially impact the original emergency management plan;

(g) Waste Management. Provide a waste management plan that includes an inventory of estimated solid wastes and a proposed disposal program for the construction, operation and eventual decommissioning of the proposed facility;

(h) Legal Access, Signs, and Traffic Study. Provide evidence sufficient for the board of county commissioners to determine if the proposed facility has adequate legal access, such as an attorney's title opinion. Title insurance is not sufficient assurance unless insured for the value of the facility. The application also shall describe how private roadways within the facility will be marked as private roadways and shall acknowledge that no county is required to repair, maintain or accept any dedication of the private roadways to the public use. The application also shall include a traffic study of any public roadways leading to and away from the proposed facility and the board of county commissioners and department of transportation may require the applicant to enter into access permits and a

reasonable road use agreement for the use of county roads or state highways prior to construction of the facility;

(i) Plat of plan. Provide a project plan indicating the proposed roadways, tower locations, substation locations, transmission, collector and gathering lines and other ancillary facility components. If the application is granted, the board of county commissioners shall require that the project plan be revised to show the final location of all facilities certified by the Applicant's engineer licensed in the state of Wyoming.

(j) No Advertising. Certify that there shall be no advertising or promotional lettering on any solar energy facility, tower, turbine, nacelle or blade beyond the manufacturer's or the applicant's logo on the solar energy facility or the nacelle of the turbine;

(k) Reclamation and Decommissioning. Provide a site and facility reclamation and decommissioning plan which indicates the planned life of the facility and the means by which the facility and its site will be decommissioned and reclaimed at the end of the facility's life and which certifies that any owner of land within the facility and its site who is not the applicant has been consulted in development of the reclamation and decommissioning plan. Such plan shall comply with all requirements adopted by the industrial siting council under W.S. 35-12-105(d). If the permit is granted, the plan shall be updated every five (5) years until site reclamation and decommissioning is complete;

(l) Adverse Environmental, Social or Economic Effects. For wind energy facilities and solar energy facilities not meeting the definition of an industrial facility as defined in W.S. 35-12-102(a)(vii)(E) or (G), provide a detailed summary of any significant adverse environmental, social or economic effects that the proposed facility may have together with any preliminary plans developed to alleviate any of the adverse effects;

(m) Industrial Siting Standards. A facility subject to this article shall meet the requirements adopted pursuant to W.S. 35-12-105(d) and (e) regardless of whether the facility is referred to the industrial siting council pursuant to W.S. 18-5-509 or is otherwise subject to the industrial siting act;

(n) Facility Assurances. Provide satisfactory evidence that the applicant has the financial capability to construct, maintain and operate the facility;

(o) Sales Tax. The Applicant shall take delivery of all taxable portions of the facility within Crook County, Wyoming so that the point of sale for the determination of sales tax takes place within Crook County, Wyoming so all sales tax is paid and reported within Crook County, Wyoming. If any

portion of the facility that is taxable is not paid to Crook County the Applicant shall pay an equivalent amount directly to Crook County; and

(p) Cost of Services. The Applicant shall pay the county up to 2.76% of the total estimated material costs of the facility as those costs are determined by the Board of County Commissioners. This fee shall be reduced by the amount of sales tax paid by the Applicant to the County from this facility, and shall pay for any impacts caused by the facility throughout the estimated life of the facility including but not limited to: increased road and bridge department road improvement, maintenance and repairs, law enforcement officers, equipment, vehicles patrols, and fire department equipment, training, manpower, facilities as well as other county services.

Section 7. Minimum Standards for Issuance of a Permit.

1) No board of county commissioners shall issue a permit for a facility if that facility:

(a) Adopted Standards. Does not comply with county policies, rules and regulations, and the standards properly adopted by the board of county commissioners for the construction of wind energy facilities or solar energy facilities, which standards shall not be less stringent than the standards required by Wyoming Statute 18-5-501 thru 18-5-513, except as allowed by Wyoming Statute 18-5-504.

(b) Property Line. For wind energy facilities, would locate the base of any tower at a distance of less than one hundred ten percent (110%) of the maximum height of the tower from any property line contiguous or adjacent to the facility, unless waived in writing by the owner of every property which would be located closer than the minimum distance.

(c) Public Road. For wind energy facilities, would locate the base of any tower at a distance of less than one hundred ten percent (110%) of the maximum height of the tower from the public road right-of-way.

(d) Private Roads. For wind energy facilities, would locate the base of any tower at a distance of less than one hundred ten percent (110%) of the maximum height of the tower from the private road and or easement right-of-way.

(e) Platted Subdivision Nearby. For wind energy facilities, would construct any tower or other structure, other than underground structures, transmission lines, roadways and structures appurtenant to roadways, at a distance of less than five and one-half (5.5) times the maximum height of the tower, but in no event less than one thousand (1,000) feet from any platted subdivision unless this restriction is waived in writing by the owners of all lands included within the

distance specified in this paragraph and all owners of land within the remainder of the subdivision.

(f) Residential Dwelling or Occupied Structure Nearby. For wind energy facilities, would locate the base of any tower at a distance of less than five and one-half (5.5) times the maximum height of the tower, but in no event less than one thousand (1,000) feet from a residential dwelling or occupied structure, when the shadow, flicker, or reflection from the turning blades will strike the residential dwelling or occupied structure (based upon orientation or line of sight) unless waived in writing by the person holding title to the residential dwelling or occupied structure.

(g) City and Towns. For wind energy facilities, would locate the base of any tower at a distance of less than one-half (1/2) mile from the limits of any city or town;

(h) Public Property. For any facility, would damage any public property or improvement including but not limited to roads, fences, cattleguards, and bridges without paying up front for the damage.

(i) Noise. For any facility, would exceed 40 decibels as measured from the closest residential dwelling, occupied structure, or from any property line contiguous or adjacent to the facility, whichever is closer to the tower unless waived in writing in a binding recorded document by every owner of the adjoining property.

(j) Reflection. For any facility, would cause a shadow, flicker, or reflection from any part of the facility or the turning blades to strike a residential dwelling or occupied structure (based upon orientation or line of sight) within one (1) mile of a residential dwelling or occupied structure unless waived in writing by all of the owners of the dwelling or structure.

(k) Decommissioning. For any facility, would not have a decommissioning bond or other financial assurances that will ensure that the entire facility would be removed upon any portion of the facility no longer being used to generate electricity.

(l) Safety. For any facility, would harm the health, safety and welfare of the citizens of Crook County.

(m) For solar energy facilities:

(i) Would locate the facility within three hundred (300) feet of an occupied structure or residence unless waived in writing by the owner of the structure or residence but in no event cause snow drifting of an occupied

structure or residence caused by the facility which is generally up to 34 times the height of the obstruction;

(ii) Would locate the facility within one hundred (100) feet of any outer boundary of the facility, but in no event cause snow drifting on a boundary fenceline caused by the facility which is generally up to 34 times the height of the obstruction unless waived in writing by the owner of the adjoining landowner;

(iii) Would locate the facility on unzoned or agricultural zoned land less than two hundred (200) feet from any public road or private easement right-of-way or on other land less than one hundred (100) feet from any public road right-of-way or private easement, but in no event cause snow drifting on a public road or private easement caused by the facility which is generally up to 34 times the height of the obstruction, (for example a 10 feet high facility would require a 340 feet setback from the public or private road.)

2) No board of county commissioners shall issue a permit for a facility if the Applicant:

(a) Fee. Has not deposited along with the Application for a permit the fees required by these rules with the County Clerk.

(b) Rules. Has not complied with these or any other County policy, rules and regulations, and any other State laws or state Industrial Siting rules and regulations.

3) Minimum Standards set by County and State. No rule, regulation or law promulgated or applied by any county in this state shall adopt a standard less stringent than the minimum standards established in W.S. 18-5-504 (a). The minimum standards stated in subsection (a) of this section shall be incorporated into every existing or future county permitting or licensing process to which they are applicable so that no applicant for a permit under this article is required to submit more than one (1) application addressing these standards to any county.

4) Variances. Notwithstanding subsection (c) above, any board of county commissioners for solar energy facilities:

(a) May vary the location and setback requirements provided in subsection (a) of this section, either on its own or by following its land use planning, zoning or conditional use processes;

(b) For lands within the boundaries of any incorporated municipality, shall require any setbacks recommended by the governing body of the municipality within the boundaries of that municipality;

(c) May increase setbacks required from public road rights-of-way beyond those required in this section to accommodate known big game animal migrations and frequent local wildlife movements and to reduce the risk of motor vehicle and big game animal collisions. A board of county commissioners may consult with the:

- (i) Game and fish department for setbacks from public roads;
- (ii) Department of transportation for setbacks from state highways;
- (iii) County's appropriate local entity for setbacks from county roads.

5) Mineral Rights. No board of county commissioners shall issue a permit under W.S. 18-5-502(a) until that county has adopted rules and regulations governing the notice that the application for a permit must provide to the record owners and claimants of mineral rights located on and under lands where the facility will be constructed. The rules shall conform to rules adopted by the industrial siting council for the same purpose pursuant to W.S. 35-12-105.

6) Military Sites. For a permit granted for a wind energy facility under this article, there shall be no vertical construction of a wind turbine within two (2) nautical miles of any active federal military missile launch or control facility, unless the owner or developer of the wind energy facility first obtains and furnishes documentation to the board of county commissioners of:

(a) A written determination of no adverse impact on nuclear security operations from the military installation commander or the commander's designee. The determination shall not be unreasonably withheld or denied;

(b) A determination of no hazard from the federal aviation administration; and

(c) Documentation from the federal military aviation and installation assurance siting clearinghouse that resolves any potential adverse impact on military operations and readiness and that commits to implement required mitigation measures.

7) Devils Tower. No facilities shall be located within 10 miles of Devil's Tower National Monument or within its viewshed from ground level of the base of Devil's Tower, whichever is greater.

Section 8. Review of Application.

1) Review. Upon receipt of an application by the Crook County Clerk who shall set a hearing upon the initial review of the application in thirty (30) days and

deliver the application and all attachments to the counties contract engineer, the board of county commissioners through their contract engineer shall conduct a review of the application to determine if it contains all the information required by W.S. 18-5-503, these rules and regulations, and any other applicable rules and regulations, policies which can be acquired from the Crook County Clerk and available on the county website www.crookcounty.wy.gov and Wyoming Secretary of State; and any additions, amendments and modifications by County or the State approved by the County if allowed by law.

2) Notice of Deficiencies. The County Clerk shall set a hearing at a regular or special meeting of the board of county commissioners upon the initial review of the application in thirty (30) days of the submittal of the application to the County Clerk. If the board of county commissioners determines at that hearing that the application is incomplete, based upon the review by the contract engineer it shall at a regular meeting or special meeting as soon as practicable within thirty (30) days of receipt of the application notify the applicant of the specific deficiencies in the application.

3) Request for Additional Information. The applicant shall provide the additional information necessary within forty-five (45) days of receipt of a request for additional information from the board.

4) Notice of Completed Application and Public Hearing. When the board of county commissioners determines that the application is complete the County Clerk shall notify the applicant that the application is complete and the Applicant shall provide notice of the location, date and time at which the hearing required by W.S. 18-5-506 will be conducted.

Section 9. Hearing and Public Comment.

1) Public Hearing. Any board of county commissioners receiving an application to permit a facility shall hold a public hearing to consider public comment on the application no less than forty-five (45) days and not more than ninety (90) days after determining that the application is complete.

2) Written Comments. Written comment on the application shall be accepted by the board of county commissioners for not less than forty-five (45) days after determining that the application is complete.

3) Oral Comments. All oral comments on the application shall be accepted by the board of county commissioners no later than the public hearing.

4) Type of Hearing. The hearing is a legislative type hearing and not a contested case hearing.

Section 10. Decision of the Board; and Required Findings.

- 1) Permit Granted. Within sixty (60) days from the date of completion of the hearing required by Section 9 and W.S. 18-5-506, the board shall make complete findings, issue an opinion, render a decision upon the record either granting or denying the application and state whether or not the applicant has met the standards required by W.S. 18-5-501 et. Seq. and these rules and regulations. The decision shall be subject to the remedies provided in W.S. 18-5-508. The board shall grant a permit if it determines that the proposed facility complies with all standards properly adopted by the board of county commissioners and the standards required by W.S. 18-5-501 et. Seq.
- 2) No Permit Granted. No permit shall be granted if the application is incomplete or if all notices required by W.S. 18-5-503 have not been timely given.
- 3) Notice of Decision. A copy of the decision shall be served upon the applicant and posted on the County website for public access.

Section 11. Remedies.

- 1) Appeal. Any party aggrieved by the final decision of the board of county commissioners may have the decision reviewed by the district court pursuant to Rule 12 of the Wyoming Rules of Appellate Procedure.
- 2) Final Order. When a decision is issued after hearing on an application for a permit under this article, the decision is final for purposes of judicial review.

Section 12. Referral.

1) Cause for Referral.

(a) Application. Any board of county commissioners which receives an application to permit a wind energy or solar energy facility which does not meet the definition of an industrial facility as defined in W.S. 35-12-102(a)(vii) (E) or (G) may refer the facility to the industrial siting council for additional permitting consistent with the requirements of the Industrial Development Information and Siting Act, W.S. 35-12-101 through 35-12-119, but the provisions of W.S. 39-15-111 and 39-16-111 shall not apply.

(b) Reason for referral. A referral shall be made only when a board of county commissioners finds there are potentially significant adverse environmental, social or economic issues which the county board of commissioners does not have the expertise to consider or authority to address.

(c) Decommissioning. If Crook County lacks the expertise to consider the adverse environmental and economic issues involved, determination of the adequacy of decommissioning and site reclamation plans and of the adequacy of the financial assurances therefore required by or referenced by WS 35-12-105, (d)

and (e); 18-5-503, (a) (x), and (b); and Chapter 1, Section 2, (o), Section 10, (d) and (e), Rules and Regulations of the Industrial Siting Council. All decommissioning plan and financial assurance matters maybe referred to the Industrial Siting Council pursuant to WS 18-5-509 or may be determined by the Board of County Commissioners after consultation with the Industrial Siting Council, their staff or other sources.

2) Waiver of Permit. An Applicant of a facility referred to the industrial siting council under this section may apply to the council for a waiver of permit application pursuant to W.S. 35-12-107.

3) Rejection. Upon receiving a referral pursuant to this section and within fifteen (15) days after receipt of the referral, the director of the department of environmental quality may reject the referral by giving written notice of the rejection to the county making the referral and the applicant. No appeal from the decision of the director under this subsection shall be allowed.

4) Commissioners Obligation. A referral made pursuant to this section 12 shall not relieve a board of county commissioners from its obligation to consider whether the proposed wind energy facility should be permitted under the standards required by this article, W.S. 18-5-501 et. Seq.

5) Time Requirement. A referral made pursuant to this section shall be made no later than thirty (30) days after an application is deemed complete pursuant to W.S. 18-5-505 and Section 8. (d).

Section 13. Binding Effect of Referral. Upon referral of a facility to the industrial siting council pursuant to Section 12 and W.S. 18-5-509, the facility shall not be withdrawn from the council's consideration without consent of the council. Any decision by the council shall be final except as provided in this article or pursuant to the remedies provided to other facilities permitted by the council.

Section 14. Revocation or Suspension of Permit.

1) A permit may be revoked or suspended for any one of the following reasons:

(a) Material False Statement. Any material false statement in the application or in accompanying statements or studies required of the applicant, if a true statement would have warranted the refusal to grant a permit;

(b) Failure to Comply. Failure to comply with the terms or conditions of the permit after notice of the failure and reasonable opportunity to correct the failure;

(c) Violation. Violation of W.S. 18-5-501 et. Seq, these rules and regulations adopted pursuant to W.S. 18-5-501 et. Seq or valid orders of the board of county commissioners or the industrial siting council;

(d) Failure to Receive Required Permit. Failure of the proposed ~~wind~~ wind energy facility to receive a required permit from the industrial siting council pursuant to the Industrial Development Information and Siting Act, W.S. 35-12-101 through 35-12-119; or

(e) Failure of the permitted wind energy facility to:

(i) Transmit electricity created by wind energy for a period of two (2) consecutive years or more;

(ii) Maintain land rights necessary to operate the wind energy facility.

(f) Failure of the permitted solar energy facility to maintain land rights necessary to operate the wind energy facility.

Section 15. Penalties for Violations.

1) Pursuant to Wyoming Statute 18-5-512 and these rules: No person shall:

(a) Commence to construct a wind energy facility on or after July 1, 2010 or a solar energy facility on or after July 1, 2020 without first obtaining a permit required by this article W.S. 18-5-501 et. Seq;

(b) Construct, reconstruct, operate, locate, erect, maintain, enlarge, change or use a facility, after having first obtained a permit, other than in specific compliance with the permit; or

(c) Cause any of the acts specified in this subsection to occur.

2) Any person violating subsection (a) of this section is liable for a civil penalty of not more than ten thousand dollars (\$10,000.00) for each violation. Each day of a continuing violation constitutes a separate offense.

3) Any wind turbine tower or wind generator or portion thereof or any solar panel or facility or portion thereof erected in violation of this article W.S. 18-5-501 et. Seq shall subject the owner of the tower, generator or solar energy panel or facility to a penalty of seven hundred fifty dollars (\$750.00) per day for every tower, generator or solar panel or facility so erected.

4) Any penalties collected pursuant to this section shall be paid and credited as provided by WS. 8-1-109.

Section 16. Fees.

1) Processing Fee. A board of county commissioners receives an application under this article W.S. 18-5-501 et. Seq for the permitting of a facility may charge the applicant a reasonable fee which shall not exceed the reasonably anticipated costs of processing and considering the application and conducting public hearings. Since the actual processing cost may vary this processing fee shall be paid by the applicant to pay for all the costs incurred by the county involved in this matter, including but not limited to:

(a) An initial deposit of \$25,000.00 for a portion of the fee for the cost of review by the County Contract Engineer Fee shall be deposited with the Crook County Clerk for the County Contract Engineer fees and expenses incurred by the County to review the initial application and attached documents for compliance with this regulation and the inspection of constructed improvements.

(b) The funds deposited for the County Contract Engineer Fee shall be paid out as invoices submitted to the County and approved by the Board at their next regular board meeting.

(c) The applicant shall maintain a \$5,000.00 Deposit balance with the Crook County Clerk throughout the life of the permit. If this deposit balance is not maintained by the applicant, the application shall be denied.

(d) Upon final review and inspection of the construction of the facility improvements by the County Contract Engineer, the Board shall charge the final expenses to this deposit amount and if any remains, it shall be held by the County and remain a credit with the applicant to pay a portion of the County Contract Engineer for any inspections or decommissioning.

(e) If the expense of review and inspection exceeds the deposit the Board will invoice the applicant for this amount which shall be paid before the application is granted, together with interest at 18% per annum compounded daily plus attorney's fees and may void the application.

2) Building Permit Fee. The board of county commissioners also may collect a reasonable building permit fee prior to commencement of construction which shall not exceed the reasonably anticipated administrative costs of issuing the building permit and overseeing compliance with permit conditions and requirements.

3) Application Fee. The Applicant shall pay the county an application fee of 2.76% of the cost per wind turbine at the same time the application for the permit is filed, which shall be deposited in the general fund of the county. The Applicant shall pay the county an application fee of 2.76% of the cost per solar panel at the same time the application for the permit is filed, which shall be deposited in the general fund of the county.

4) The application fee shall be up to 2.76% of the total estimated material costs of the facility as those costs are determined by the Board of County Commissioners. This fee shall be reduced by the amount of sales tax paid in Crook County, Wyoming.

Section 17. Forms. The Board of County Commissioners may from time to time without notice create and adopt Forms that the Applicant shall be required to use.

Section 18. Effective Date and Approval. This Crook County Wind Energy and Solar Energy Facility Regulation shall become effective on the date it is filed in the office of the Crook County Clerk.

Approved and adopted this 5th day of August, 2025.

BOARD OF COUNTY COMMISSIONERS IN AND FOR CROOK COUNTY, WY

BY _____
FRED M. DEVISH, CHAIRMAN

BY _____
BOB LATHAM, VICE-CHAIRMAN

BY _____
DALE DAVIS, MEMBER

State of Wyoming }
 }
County of Crook }

Signed or attested before me on August 5, 2025, by Fred M. Devish, Chairman, Bob Latham, Vice-Chairman and Dale Davis, Member, Board of Crook County Commissioners in and for Crook County, Wyoming.

(Seal)

MELISSA JONES, CROOK COUNTY CLERK
My term of office expires January 4, 2027